

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Team # 1	CCRB Case #: 201401481	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 02/10/2014 3:00 AM	Location of Incident: Roosevelt Avenue and Junction Boulevard	18 Mo. SOL 8/10/2015	Precinct: 115
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/14/2014 10:27 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Onieal	09361	954192	PBQ/N

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kyle Gabay	27791	954832	PBQ/N
2. POM Mark Pane	18727	954209	PBQ/N
3. POM Joseph Mccrain	11977	949295	115 PCT
4. POM Thomas Bates	01067	950055	115 PCT
5. SGT Jonkris Rzonca	02960	935669	PBQ/N

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Onieal	Off. Language: PO Michael O'Neal made remarks to § 87(2)(b) based upon ethnicity.	A . Unsubstantiated
B . POM Michael Onieal	Force: PO Michael O'Neal used physical force against § 87(2)(b)	B . Unfounded

Case Summary

§ 87(2)(b) filed this complaint via telephone with the Internal Affairs Bureau on February 11, 2014. The complaint generated referral #14-5297 and was received at the CCRB on February 14, 2014. (encl. B1-B4)

On February 10, 2014, § 87(2)(b) was arrested by PO Michael O’Neal, from Patrol Borough Queens North, in the vicinity of Roosevelt Avenue and Junction Boulevard in Queens. The following allegations resulted:

Allegation A: Offensive language- PO Michael O’Neal made remarks to § 87(2)(b) based upon ethnicity.

§ 87(2)(g)
Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B: Force- PO Michael O’Neal used physical force against § 87(2)(b)

§ 87(2)(g)
Therefore, it is recommended that **Allegation B** be closed as **Unfounded**.

This case was not mediation eligible.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a Spanish speaker. See enclosure for § 87(2)(b)'s pedigree information. (encl. D4)

Statements to Medical Personnel

On February 10, 2014, § 87(2)(b) was treated at § 87(2)(b). § 87(2)(b) stated that she was driving her car when she was pulled over by the police. § 87(2)(b) was taken out of the car and thrown to the ground by the police. She was having difficulty breathing and needed her pump but twelve officers took her to a dark place and said “This fucking Mexican can die here alone on the floor.” § 87(2)(b) complained of pain to her upper back and left knee from hitting the ground § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on February 26, 2014. (encl. D1-D10)

On February 10, 2014, § 87(2)(b) was driving her car and was accompanied by her boyfriend, § 87(2)(b) who was seated in the front passenger seat and his brother, § 87(2)(b) who was seated behind § 87(2)(b). § 87(2)(b) did not consume any alcohol or drugs on that evening.

While crossing the intersection of 41st Avenue and Roosevelt Avenue, § 87(2)(b) looked to her left and noticed a marked van about a block away, driving towards her at a high speed and with no sirens on. § 87(2)(b) was halfway through the street and there were two cars behind her so she accelerated and turned left onto Roosevelt Avenue to avoid crashing with the marked van. Upon turning, the right side of § 87(2)(b)'s car hit a block of ice. § 87(2)(b) attempted to move her car, but it was stuck and slightly tilted up on the ice.

The marked van immediately stopped and four uniformed officers identified via investigation as PO Michael O’Neal, PO Kyle Gabay, PO Joseph McCrain, and PO Thomas Bates, from Patrol Borough Queens North, stepped out and approached the driver side of § 87(2)(b) s car. PO O’Neal requested § 87(2)(b) s license and registration. As she handed her license to him, PO O’Neal stated, “That’s Mexican driving my car.” PO Gabay, PO McCrain and PO Bates laughed. § 87(2)(b) did not respond. PO O’Neal quickly returned to the marked van and one of the officers, § 87(2)(b) was not sure which one, remained at the driver side of § 87(2)(b) s car but did not interact with her or her passengers.

In her initial complaint narrative, § 87(2)(b) alleged that PO O’Neal call her a “Fucking Mexican.” However, in her phone statement, § 87(2)(b) alleged that officers told her she should go back to Mexico, that she couldn’t afford the car she was driving, and other comments, which she did not specify, about her being Mexican.

While waiting, § 87(2)(b) and § 87(2)(b) joked around and laughed inside the car because they thought she would get a summons, although she did not know for what offense. PO O’Neal returned within three minutes and told § 87(2)(b) and § 87(2)(b) to step out of the car; both complied. PO O’Neal had handcuffs in his hands and asked § 87(2)(b) to exit the car. § 87(2)(b) and § 87(2)(b) asked why she would be arrested. PO O’Neal opened the driver side door and repeated his command; § 87(2)(b) complied.

PO O’Neal informed § 87(2)(b) that she had a suspended license, handcuffed her, and placed her inside the marked van. § 87(2)(b) did not physically resist in any way. § 87(2)(b) felt sick and asked PO O’Neal for her asthma pump, but he ignored her request. No other police vehicles or officers arrived at the scene. The marked van drove off and § 87(2)(b) did not see what happened to her car, § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not know how much time elapsed because she passed out. When § 87(2)(b) woke up, she was laying on the street, alongside of the marked van. PO O’Neal, PO Gabay, PO Bates, and PO McCrain were outside of the marked van, near § 87(2)(b) s feet. § 87(2)(b) was not sure of their location but recognized the area and believed that she was at 112th Street and Northern Boulevard.

§ 87(2)(b) told the officers, “Please. I need my pump. I’m having an asthma attack.” PO O’Neal kicked § 87(2)(b) s left calf once, which resulted in a bruise, and stated, “This Mexican didn’t die yet?” § 87(2)(b) did not raise these allegations in her initial complaint narrative. Additionally, in her phone statement, she alleged that she had been kicked by more than one officer.

§ 87(2)(b) continued to ask for medical assistance. An ambulance arrived approximately ten minutes later and § 87(2)(b) was transported to § 87(2)(b). § 87(2)(b) did not know what type of treatment she received. § 87(2)(b) had a bruise in the middle of the left arm and her right elbow was red, but she did not know how these injuries were sustained.

Attempts to Contact Civilians

On March 10, 2014, a Lexis Nexis was conducted for § 87(2)(b) and § 87(2)(b). The search yielded multiple hits given the commonality of the names and no further information to narrow down the search. On March 17, 2014, a call was placed to the phone number § 87(2)(b) provided for § 87(2)(b). A man answered and stated that there was no one by the name of § 87(2)(b) or § 87(2)(b) associated to that phone number. On March 26, 2014, § 87(2)(b) provided a birthdate for § 87(2)(b). A Lexis Nexis was conducted on the same day that yielded multiple hits. § 87(2)(b) agreed to call the undersigned and provide § 87(2)(b) s address but has not contacted the CCRB since.

NYPD Statements:

Subject Officer: PO MICHAEL O'NEAL

- See enclosure for PO O'Neal's pedigree and assignment information. (encl. E12)

Memo Book

PO O'Neal had memo book entries pertaining to § 87(2)(b)'s arrest. (encl. E1-E4)

CCRB Testimony

PO O'Neal was interviewed at the CCRB on June 13, 2013. (encl. E1-E14)

PO O'Neal and PO Gabay were patrolling when they observed a car drive onto the sidewalk and then back on the street. PO O'Neal and PO Gabay decided to stop the car. Simultaneously, another marked car occupied by PO Bates and PO McCrain pulled up next to the car. PO Gabay made a U-turn to approach the car too and as he did this, § 87(2)(b) tried to drive away. Consequently, PO Gabay pulled up in front of § 87(2)(b)'s car.

PO O'Neal approached the driver side and asked § 87(2)(b) for her license and she complied. PO O'Neal asked § 87(2)(b) to step out of her car and she complied. § 87(2)(b) was calm but she had watery eyes, was unsteady on her feet and smelled like alcohol. Consequently, she was placed under arrest for § 87(2)(b). § 87(2)(b) was handcuffed and was calm during the process.

Sgt. Rzonca responded with his unidentified operator. Sgt. Rzonca attempted to have § 87(2)(b) blow into breathalyzer but she refused. Sgt. Rzonca verified the arrest and instructed PO O'Neal and PO Gabay to take § 87(2)(b) to the 112th Precinct stationhouse to perform a formal breathalyzer test. § 87(2)(b)'s car was taken to the stationhouse but PO O'Neal did not know by whom.

On the way to the 112th Precinct stationhouse, § 87(2)(b) asked PO O'Neal and PO Gabay if there were any cameras in the marked van. PO O'Neal replied no. § 87(2)(b) attempted to kick out the back window of the marked van and screamed obscenities in English and in Spanish by asking the officers if they wanted to "fuck her" and "rape her" and stated that she was not a prostitute. PO O'Neal did not remember what else § 87(2)(b) said but he and PO Gabay did not respond to her statements.

PO O'Neal and PO Gabay stopped the marked van at the intersection of 112th Street and Northern Boulevard. PO O'Neal and PO Gabay exited the marked van and tried to prevent § 87(2)(b) from kicking the back window by removing her from the marked van. PO O'Neal and PO Gabay opened the door, but before they could get to the back seat, § 87(2)(b) jumped out of the marked van. PO O'Neal and PO Gabay prevented § 87(2)(b) from hurting herself by holding her up. § 87(2)(b) kept throwing herself down and fell to the ground. There was a patch of snow on the street so PO O'Neal and PO Gabay leaned § 87(2)(b) against it.

PO O'Neal and PO Gabay requested an ambulance over the radio for intoxication and mental review. Sgt. Rzonca, his operator, PO McCrain, and PO Bates responded after hearing the radio run. She was combative with EMT's and refused to get in the ambulance by kicking and yelling. In the process, § 87(2)(b) kicked Sgt. Rzonca in the groin. § 87(2)(b) was placed in the ambulance and transported to § 87(2)(b). PO O'Neal escorted § 87(2)(b) in the ambulance. § 87(2)(b) was sedated in the hospital. PO O'Neal did not see any injuries on § 87(2)(b) and she did not complain of pain. § 87(2)(b) was taken to the hospital and then to 115th Precinct stationhouse for arrest processing.

PO O'Neal did not and did not see any officer use force against § 87(2)(b) or kick her. PO O'Neal did not and did not hear any officer use offensive language towards § 87(2)(b) or say, "That's Mexican driving my car" or "This Mexican didn't die yet?"

Witness Officer Statements:

PO Kyle Gabay, PO Joseph McCrain, PO Thomas Bates, Sgt. Jonkris Rzonca and PO Mark Pane were interviewed at the CCRB. They all had entries in their memo books with regards to this incident, corroborated PO O’Neal’s testimony, confirmed § 87(2)(b) s level of resistance and denied the aforementioned allegations. (encl. F1-F10; G1-G8; H1-H6; I1-I7; J1-J5)

Medical Records

§ 87(2)(a) PHL § 18(6)

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NYPD Documents

Medical Treatment of Prisoner Report

The Medical Treatment of Prisoner Report prepared for § 87(2)(b) noted that she was intoxicated. § 87(2)(b) became combative, kicked the window of the police vehicle, and kicked the impact supervisor’s leg and was screaming and yelling. (encl. K2)

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 29, 2014 with regard to the incident. (encl. N3)

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A2)

Subject Officer CCRB History

- PO Michael O’Neal has been a member of the service for one year and there are no substantiated CCRB allegations against him. (encl. A1).

Conclusion

Identification of Subject Officer

PO O’Neal acknowledged interacting with § 87(2)(b)

Allegations Not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Offensive language- PO Michael O’Neal made remarks to § 87(2)(b) based upon ethnicity.

§ 87(2)(b) alleged that after PO O’Neal requested her license and registration, he stated, “That’s Mexican driving my car.” Later in the incident, PO O’Neal allegedly stated, “This Mexican didn’t die yet?”

§ 87(2)(b) and § 87(2)(b) did not participate in this investigation.

PO O’Neal denied making the alleged offensive statement. PO Gabay, PO McCrain, PO Bates, Sgt. Rzonca, and PO Pane also denied the allegation.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B: Force- PO Michael O’Neal used physical force against § 87(2)(b)

§ 87(2)(b) also alleged that she lost consciousness while she was in police custody and, when she regained consciousness, PO O’Neal kicked her left calf once, which resulted in a bruise. § 87(2)(b) did not allege this when she filed her complaint with IAB, a day after the incident. In her phone statement, § 87(2)(b) alleged that she was kicked by more than one officer. § 87(2)(b) denied consuming alcohol the night of the incident and denied resisting the officers.

§ 87(2)(a) PHL § 18(6)

The Medical Treatment of Prisoner Report prepared for § 87(2)(b) also notes that she was intoxicated. The documents corroborate that § 87(2)(b) was yelling and was physically combative by kicking the window of a police vehicle, the sergeant’s leg, and medical staff, and by refusing to get in the ambulance. § 87(2)(b) complained to medical staff that she had pain to her upper back and left knee from hitting the ground after being taken out of her car and thrown to the ground by the police, but did not mention the alleged force.

PO O’Neal denied kicking § 87(2)(b). PO Gabay, PO McCrain, PO Bates, Sgt. Rzonca, and PO Pane also denied seeing PO O’Neal kick § 87(2)(b). All of the officers provided consistent statements and confirmed § 87(2)(b)’s level of resistance.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unfounded**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date